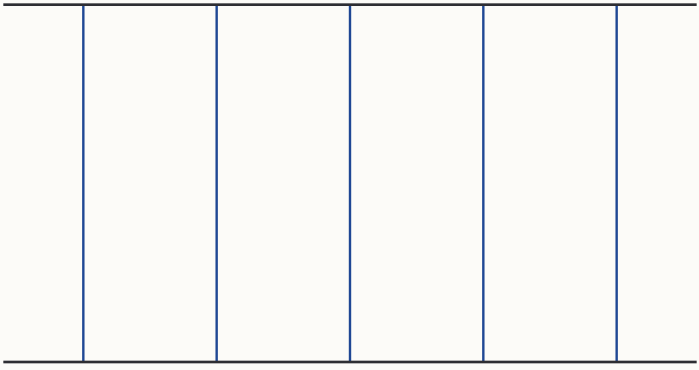
LAWS OF NEPAL · CONSTITUTIONAL TEXT

Constitution of Nepal (2072 BS)

Sovereignty, Fundamental Rights, State Policies, and Constitutional Bodies



Nepal Law Commission Reference Digest

35 Parts · 308 Articles · 9 Schedules · 5 Pages

PART 1 · PRELIMINARY (ARTICLES 1–9)

Constitutional Supremacy and Sovereignty

> *This Constitution is the fundamental law of Nepal. Any law inconsistent with this Constitution shall, to the extent of such inconsistency, be void.*

Article 2 vests the sovereignty and state authority of Nepal in the Nepali people. Article 4 defines Nepal as an independent, indivisible, sovereign, secular, inclusive, democratic, socialism-oriented, federal democratic republican state.

PART 3 · FUNDAMENTAL RIGHTS (ARTICLES 16–46)

Thirty-One Guaranteed Fundamental Rights

Part 3 codifies comprehensive civil, political, economic, social, and cultural rights enforceable via constitutional remedies under Articles 46, 133, and 144:

- Right to live with dignity (Art. 16), Freedom (Art. 17), and Equality (Art. 18).
- Right to Communication (Art. 19), Justice & Fair Trial (Art. 20), and Right of Victim of Crime (Art. 21).
- Right to Information (Art. 27), Privacy (Art. 28), Clean Environment (Art. 30), and Education (Art. 31).
- Right to Employment (Art. 33), Health (Art. 35), Food Sovereignty (Art. 36), Housing (Art. 37), Women, Dalit, and Social Justice rights (Arts. 38–42).
- Duties of Citizens (Article 48): Allegiance to the nation, abiding by the Constitution and law, compulsory public service when required, and protection of public property.

PARTS 7–11 · ORGANS OF STATE

Executive, Bicameral Legislature, and Judiciary

- Federal Executive (Part 7): Council of Ministers headed by the Prime Minister, accountable to the House of Representatives.
- Federal Parliament (Part 8): House of Representatives (275 members: 165 FPTP + 110 Proportional) and National Assembly (59 permanent members).
- Judiciary (Part 11): Three-tier integrated court system—Supreme Court, 7 High Courts, and 77 District Courts—with judicial review authority.

PARTS 21–27 · CONSTITUTIONAL BODIES

Thirteen Independent Constitutional Commissions

Includes CIAA, Auditor General, Public Service Commission (Part 23, Art. 242), Election Commission, National Human Rights Commission, Natural Resources & Fiscal Commission, plus Women, Dalit, Inclusion, Indigenous Nationalities, Madheshi, Tharu, and Muslim Commissions.